

COMMITTEE ON FINANCE
SENATE AMENDMENTS TO S.B. 1347
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 20, chapter 4, article 3, Arizona Revised
3 Statutes, is amended by adding section 20-841.14, to read:

4 20-841.14. Fertility preservation coverage; requirements;
5 religious employer; exemption; definitions

6 A. A HOSPITAL SERVICE CORPORATION OR MEDICAL SERVICE CORPORATION
7 THAT ISSUES, AMENDS OR RENEWS A SUBSCRIPTION CONTRACT ON OR AFTER JANUARY
8 1, 2027 SHALL PROVIDE COVERAGE FOR STANDARD FERTILITY PRESERVATION
9 SERVICES TO A SUBSCRIBER WHO IS WITHIN REPRODUCTIVE AGE, WHO IS DIAGNOSED
10 WITH CANCER AND WHOSE MEDICALLY NECESSARY TREATMENT [MAY] [IS LIKELY TO]
11 DIRECTLY OR INDIRECTLY CAUSE IATROGENIC INFERTILITY.

12 B. A HOSPITAL SERVICE CORPORATION OR MEDICAL SERVICE CORPORATION
13 MAY NOT REQUIRE PREAUTHORIZATION FOR STANDARD FERTILITY PRESERVATION
14 SERVICES. A SUBSCRIPTION CONTRACT MAY CONTAIN PROVISIONS FOR MAXIMUM
15 BENEFITS AND MAY REQUIRE THAT STANDARD FERTILITY PRESERVATION SERVICES BE
16 SUBJECT TO THE SAME DEDUCTIBLES, COPAYMENTS, COINSURANCE AND REASONABLE
17 LIMITATIONS AND EXCLUSIONS THAT ARE CONSISTENT WITH THIS SECTION.

18 C. A RELIGIOUS EMPLOYER MAY SUBMIT A WRITTEN REQUEST FOR AN
19 EXEMPTION FROM THE REQUIREMENTS OF THIS SECTION TO A HOSPITAL SERVICE
20 CORPORATION OR MEDICAL SERVICE CORPORATION, AND THE HOSPITAL SERVICE
21 CORPORATION OR MEDICAL SERVICE CORPORATION SHALL GRANT THE EXEMPTION IF
22 THE COVERAGE REQUIRED BY THIS SECTION CONFLICTS WITH THE EMPLOYER'S
23 RELIGIOUS BELIEFS. A RELIGIOUS EMPLOYER THAT OBTAINS AN EXEMPTION SHALL
24 PROVIDE WRITTEN NOTICE OF THE EXEMPTION TO PROSPECTIVE SUBSCRIBERS.

25 D. THIS SECTION DOES NOT PREVENT A SUBSCRIBER FROM PURCHASING A
26 SUPPLEMENTAL INSURANCE POLICY THAT COVERS STANDARD FERTILITY PRESERVATION
27 SERVICES AT THE SUBSCRIBER'S OWN EXPENSE.

28 E. FOR THE PURPOSES OF THIS SECTION:

1 1. "IATROGENIC INFERTILITY" MEANS AN IMPAIRMENT OF FERTILITY THAT
2 IS CAUSED DIRECTLY OR INDIRECTLY BY SURGERY, CHEMOTHERAPY, RADIATION OR
3 OTHER MEDICAL TREATMENT THAT HAS A POTENTIAL SIDE EFFECT OF IMPAIRED
4 FERTILITY AS ESTABLISHED BY THE AMERICAN SOCIETY OF CLINICAL ONCOLOGY OR
5 THE AMERICAN SOCIETY FOR REPRODUCTIVE MEDICINE.
6 2. "RELIGIOUS EMPLOYER" MEANS AN EMPLOYER THAT BOTH:
7 (a) IS A CHURCH, A CONVENTION OR ASSOCIATION OF CHURCHES OR AN
8 ELEMENTARY OR SECONDARY SCHOOL THAT IS CONTROLLED, OPERATED OR PRINCIPALLY
9 SUPPORTED BY A CHURCH OR BY A CONVENTION OR ASSOCIATION OF CHURCHES.
10 (b) QUALIFIES AS A TAX-EXEMPT ORGANIZATION UNDER SECTION 501(c)(3)
11 OF THE UNITED STATES INTERNAL REVENUE CODE.
12 3. "REPRODUCTIVE AGE" MEANS THE AGE RANGE IN WHICH AN INDIVIDUAL IS
13 DEEMED FERTILE AS ESTABLISHED BY THE AMERICAN SOCIETY OF CLINICAL ONCOLOGY
14 OR THE AMERICAN SOCIETY FOR REPRODUCTIVE MEDICINE.
15 4. "STANDARD FERTILITY PRESERVATION SERVICES":
16 (a) MEANS:
17 (i) OOCYTE AND SPERM PRESERVATION PROCEDURES THAT ARE CONSISTENT
18 WITH ESTABLISHED MEDICAL PRACTICES OR PROFESSIONAL GUIDELINES PUBLISHED BY
19 THE AMERICAN SOCIETY OF CLINICAL ONCOLOGY OR THE AMERICAN SOCIETY FOR
20 REPRODUCTIVE MEDICINE.
21 (ii) THE STORAGE FOR AT LEAST THREE [PLAN] YEARS OF PRESERVED
22 OVARIAN TISSUE, SPERM AND OOCYTE.
23 (b) INCLUDES CRYOPRESERVATION OF ANY OF THE FOLLOWING:
24 (i) OVARIAN TISSUE.
25 (ii) SPERM.
26 (iii) OOCYTE.
27 Sec. 2. Title 20, chapter 4, article 9, Arizona Revised Statutes,
28 is amended by adding section 20-1057.21, to read:
29 20-1057.21. Fertility preservation coverage; requirements;
30 religious employer; exemption; definitions
31 A. A HEALTH CARE SERVICES ORGANIZATION THAT ISSUES, AMENDS OR
32 RENEWS AN EVIDENCE OF COVERAGE ON OR AFTER JANUARY 1, 2027 SHALL PROVIDE
33 COVERAGE FOR STANDARD FERTILITY PRESERVATION SERVICES TO AN ENROLLEE WHO
34 IS WITHIN REPRODUCTIVE AGE, WHO IS DIAGNOSED WITH CANCER AND WHOSE
35 MEDICALLY NECESSARY TREATMENT [MAY] [IS LIKELY TO] DIRECTLY OR INDIRECTLY
36 CAUSE IATROGENIC INFERTILITY.
37 B. A HEALTH CARE SERVICES ORGANIZATION MAY NOT REQUIRE
38 PREAUTHORIZATION FOR STANDARD FERTILITY PRESERVATION SERVICES. AN
39 EVIDENCE OF COVERAGE MAY CONTAIN PROVISIONS FOR MAXIMUM BENEFITS AND MAY
40 REQUIRE THAT STANDARD FERTILITY PRESERVATION SERVICES BE SUBJECT TO THE
41 SAME DEDUCTIBLES, COPAYMENTS, COINSURANCE AND REASONABLE LIMITATIONS AND
42 EXCLUSIONS THAT ARE CONSISTENT WITH THIS SECTION.
43 C. A RELIGIOUS EMPLOYER MAY SUBMIT A WRITTEN REQUEST FOR AN
44 EXEMPTION FROM THE REQUIREMENTS OF THIS SECTION TO A HEALTH CARE SERVICES
45 ORGANIZATION, AND THE HEALTH CARE SERVICES ORGANIZATION SHALL GRANT THE
46 EXEMPTION IF THE COVERAGE REQUIRED BY THIS SECTION CONFLICTS WITH THE
47 EMPLOYER'S RELIGIOUS BELIEFS. A RELIGIOUS EMPLOYER THAT OBTAINS AN

1 EXEMPTION SHALL PROVIDE WRITTEN NOTICE OF THE EXEMPTION TO PROSPECTIVE
2 ENROLLEES.

3 D. THIS SECTION DOES NOT PREVENT AN ENROLLEE FROM PURCHASING A
4 SUPPLEMENTAL INSURANCE POLICY THAT COVERS STANDARD FERTILITY PRESERVATION
5 SERVICES AT THE ENROLLEE'S OWN EXPENSE.

6 E. FOR THE PURPOSES OF THIS SECTION:

7 1. "IATROGENIC INFERTILITY" MEANS AN IMPAIRMENT OF FERTILITY THAT
8 IS CAUSED DIRECTLY OR INDIRECTLY BY SURGERY, CHEMOTHERAPY, RADIATION OR
9 OTHER MEDICAL TREATMENT THAT HAS A POTENTIAL SIDE EFFECT OF IMPAIRED
10 FERTILITY AS ESTABLISHED BY THE AMERICAN SOCIETY OF CLINICAL ONCOLOGY OR
11 THE AMERICAN SOCIETY FOR REPRODUCTIVE MEDICINE.

12 2. "RELIGIOUS EMPLOYER" MEANS AN EMPLOYER THAT BOTH:

13 (a) IS A CHURCH OR A CONVENTION OR ASSOCIATION OF CHURCHES OR AN
14 ELEMENTARY OR SECONDARY SCHOOL THAT IS CONTROLLED, OPERATED OR PRINCIPALLY
15 SUPPORTED BY A CHURCH OR BY A CONVENTION OR ASSOCIATION OF CHURCHES.

16 (b) QUALIFIES AS A TAX-EXEMPT ORGANIZATION UNDER SECTION 501(c)(3)
17 OF THE UNITED STATES INTERNAL REVENUE CODE.

18 3. "REPRODUCTIVE AGE" MEANS THE AGE RANGE IN WHICH AN INDIVIDUAL IS
19 DEEMED FERTILE AS ESTABLISHED BY THE AMERICAN SOCIETY OF CLINICAL ONCOLOGY
20 OR THE AMERICAN SOCIETY FOR REPRODUCTIVE MEDICINE.

21 4. "STANDARD FERTILITY PRESERVATION SERVICES":

22 (a) MEANS:

23 (i) OOCYTE AND SPERM PRESERVATION PROCEDURES THAT ARE CONSISTENT
24 WITH ESTABLISHED MEDICAL PRACTICES OR PROFESSIONAL GUIDELINES PUBLISHED BY
25 THE AMERICAN SOCIETY OF CLINICAL ONCOLOGY OR THE AMERICAN SOCIETY FOR
26 REPRODUCTIVE MEDICINE.

27 (ii) THE STORAGE FOR AT LEAST THREE [PLAN] YEARS OF PRESERVED
28 OVARIAN TISSUE, SPERM AND OOCYTE.

29 (b) INCLUDES CRYOPRESERVATION OF ANY OF THE FOLLOWING:

30 (i) OVARIAN TISSUE.

31 (ii) SPERM.

32 (iii) OOCYTE.

33 Sec. 3. Title 20, chapter 6, article 4, Arizona Revised Statutes,
34 is amended by adding section 20-1376.11, to read:

35 20-1376.11. Fertility preservation coverage; requirements;
36 religious employer; exemption; definitions

37 A. A DISABILITY INSURER THAT ISSUES, AMENDS OR RENEWS A POLICY ON
38 OR AFTER JANUARY 1, 2027 SHALL PROVIDE COVERAGE FOR STANDARD FERTILITY
39 PRESERVATION SERVICES TO AN INSURED WHO IS WITHIN REPRODUCTIVE AGE, WHO IS
40 DIAGNOSED WITH CANCER AND WHOSE MEDICALLY NECESSARY TREATMENT [MAY] [IS
41 LIKELY TO] DIRECTLY OR INDIRECTLY CAUSE IATROGENIC INFERTILITY.

42 B. A DISABILITY INSURER MAY NOT REQUIRE PREAUTHORIZATION FOR
43 STANDARD FERTILITY PRESERVATION SERVICES. A POLICY MAY CONTAIN PROVISIONS
44 FOR MAXIMUM BENEFITS AND MAY REQUIRE THAT STANDARD FERTILITY PRESERVATION
45 SERVICES BE SUBJECT TO THE SAME DEDUCTIBLES, COPAYMENTS, COINSURANCE AND
46 REASONABLE LIMITATIONS AND EXCLUSIONS THAT ARE CONSISTENT WITH THIS
47 SECTION.

1 C. A RELIGIOUS EMPLOYER MAY SUBMIT A WRITTEN REQUEST FOR AN
2 EXEMPTION FROM THE REQUIREMENTS OF THIS SECTION TO A DISABILITY INSURER,
3 AND THE DISABILITY INSURER SHALL GRANT THE EXEMPTION IF THE COVERAGE
4 REQUIRED BY THIS SECTION CONFLICTS WITH THE EMPLOYER'S RELIGIOUS BELIEFS.
5 A RELIGIOUS EMPLOYER THAT OBTAINS AN EXEMPTION SHALL PROVIDE WRITTEN
6 NOTICE OF THE EXEMPTION TO PROSPECTIVE INSURED.

7 D. THIS SECTION DOES NOT PREVENT AN INSURED FROM PURCHASING A
8 SUPPLEMENTAL INSURANCE POLICY THAT COVERS STANDARD FERTILITY PRESERVATION
9 SERVICES AT THE INSURED'S OWN EXPENSE.

10 E. FOR THE PURPOSES OF THIS SECTION:

11 1. "IATROGENIC INFERTILITY" MEANS AN IMPAIRMENT OF FERTILITY THAT
12 IS CAUSED DIRECTLY OR INDIRECTLY BY SURGERY, CHEMOTHERAPY, RADIATION OR
13 OTHER MEDICAL TREATMENT THAT HAS A POTENTIAL SIDE EFFECT OF IMPAIRED
14 FERTILITY AS ESTABLISHED BY THE AMERICAN SOCIETY OF CLINICAL ONCOLOGY OR
15 THE AMERICAN SOCIETY FOR REPRODUCTIVE MEDICINE.

16 2. "RELIGIOUS EMPLOYER" MEANS AN EMPLOYER THAT BOTH:

17 (a) IS A CHURCH OR A CONVENTION OR ASSOCIATION OF CHURCHES OR AN
18 ELEMENTARY OR SECONDARY SCHOOL THAT IS CONTROLLED, OPERATED OR PRINCIPALLY
19 SUPPORTED BY A CHURCH OR BY A CONVENTION OR ASSOCIATION OF CHURCHES.

20 (b) QUALIFIES AS A TAX-EXEMPT ORGANIZATION UNDER SECTION 501(c)(3)
21 OF THE UNITED STATES INTERNAL REVENUE CODE.

22 3. "REPRODUCTIVE AGE" MEANS THE AGE RANGE IN WHICH AN INDIVIDUAL IS
23 DEEMED FERTILE AS ESTABLISHED BY THE AMERICAN SOCIETY OF CLINICAL ONCOLOGY
24 OR THE AMERICAN SOCIETY FOR REPRODUCTIVE MEDICINE.

25 4. "STANDARD FERTILITY PRESERVATION SERVICES":

26 (a) MEANS:

27 (i) OOCYTE AND SPERM PRESERVATION PROCEDURES THAT ARE CONSISTENT
28 WITH ESTABLISHED MEDICAL PRACTICES OR PROFESSIONAL GUIDELINES PUBLISHED BY
29 THE AMERICAN SOCIETY OF CLINICAL ONCOLOGY OR THE AMERICAN SOCIETY FOR
30 REPRODUCTIVE MEDICINE.

31 (ii) THE STORAGE FOR AT LEAST THREE [PLAN] YEARS OF PRESERVED
32 OVARIAN TISSUE, SPERM AND OOCYTE.

33 (b) INCLUDES CRYOPRESERVATION OF ANY OF THE FOLLOWING:

34 (i) OVARIAN TISSUE.

35 (ii) SPERM.

36 (iii) OOCYTE.

37 Sec. 4. Title 20, chapter 6, article 5, Arizona Revised Statutes,
38 is amended by adding section 20-1406.11, to read:

39 20-1406.11. Fertility preservation coverage; requirements;
40 religious employer; exemption; definitions

41 A. A GROUP OR BLANKET DISABILITY INSURER THAT ISSUES, AMENDS OR
42 RENEWS A POLICY ON OR AFTER JANUARY 1, 2027 SHALL PROVIDE COVERAGE FOR
43 STANDARD FERTILITY PRESERVATION SERVICES TO AN INSURED WHO IS WITHIN
44 REPRODUCTIVE AGE, WHO IS DIAGNOSED WITH CANCER AND WHOSE MEDICALLY
45 NECESSARY TREATMENT [MAY] [IS LIKELY TO] DIRECTLY OR INDIRECTLY CAUSE
46 IATROGENIC INFERTILITY.

1 B. A GROUP OR BLANKET DISABILITY INSURER MAY NOT REQUIRE
2 PREAUTHORIZATION FOR STANDARD FERTILITY PRESERVATION SERVICES. A POLICY
3 MAY CONTAIN PROVISIONS FOR MAXIMUM BENEFITS AND MAY REQUIRE THAT STANDARD
4 FERTILITY PRESERVATION SERVICES BE SUBJECT TO THE SAME DEDUCTIBLES,
5 COPAYMENTS, COINSURANCE AND REASONABLE LIMITATIONS AND EXCLUSIONS THAT ARE
6 CONSISTENT WITH THIS SECTION.

7 C. A RELIGIOUS EMPLOYER MAY SUBMIT A WRITTEN REQUEST FOR AN
8 EXEMPTION FROM THE REQUIREMENTS OF THIS SECTION TO A GROUP OR BLANKET
9 DISABILITY INSURER, AND THE GROUP OR BLANKET DISABILITY INSURER SHALL
10 GRANT THE EXEMPTION IF THE COVERAGE REQUIRED BY THIS SECTION CONFLICTS
11 WITH THE EMPLOYER'S RELIGIOUS BELIEFS. A RELIGIOUS EMPLOYER THAT OBTAINS
12 AN EXEMPTION SHALL PROVIDE WRITTEN NOTICE OF THE EXEMPTION TO PROSPECTIVE
13 INSURED.

14 D. THIS SECTION DOES NOT PREVENT AN INSURED FROM PURCHASING A
15 SUPPLEMENTAL INSURANCE POLICY THAT COVERS STANDARD FERTILITY PRESERVATION
16 SERVICES AT THE INSURED'S OWN EXPENSE.

17 E. FOR THE PURPOSES OF THIS SECTION:

18 1. "IATROGENIC INFERTILITY" MEANS AN IMPAIRMENT OF FERTILITY THAT
19 IS CAUSED DIRECTLY OR INDIRECTLY BY SURGERY, CHEMOTHERAPY, RADIATION OR
20 OTHER MEDICAL TREATMENT THAT HAS A POTENTIAL SIDE EFFECT OF IMPAIRED
21 FERTILITY AS ESTABLISHED BY THE AMERICAN SOCIETY OF CLINICAL ONCOLOGY OR
22 THE AMERICAN SOCIETY FOR REPRODUCTIVE MEDICINE.

23 2. "RELIGIOUS EMPLOYER" ~~[MEANS AN EMPLOYER THAT BOTH]:~~

24 (a) ~~[IS A CHURCH OR A CONVENTION OR ASSOCIATION OF CHURCHES OR AN~~
25 ~~ELEMENTARY OR SECONDARY SCHOOL THAT IS CONTROLLED, OPERATED OR PRINCIPALLY~~
26 ~~SUPPORTED BY A CHURCH OR BY A CONVENTION OR ASSOCIATION OF CHURCHES]~~
27 [MEANS A NONGOVERNMENTAL PLAN SPONSOR OR ENTITY THAT, BASED ON SINCERELY
28 HELD RELIGIOUS BELIEFS, OBJECTS TO THE SPONSOR OR ENTITY ESTABLISHING,
29 MAINTAINING, PROVIDING, OFFERING OR ARRANGING FOR COVERAGE OF STANDARD
30 FERTILITY PRESERVATION SERVICES].

31 (b) ~~[QUALIFIES AS A TAX-EXEMPT ORGANIZATION UNDER SECTION 501(c)(3)~~
32 ~~OF THE UNITED STATES INTERNAL REVENUE CODE.] [INCLUDES:~~

33 (i) A CHURCH, AN INTEGRATED AUXILIARY OF A CHURCH, A CONVENTION OR
34 ASSOCIATION OF CHURCHES OR A RELIGIOUS ORDER.

35 (ii) A NONPROFIT ORGANIZATION.

36 (iii) A CLOSELY HELD FOR-PROFIT ENTITY.

37 (iv) A FOR-PROFIT ENTITY THAT IS NOT CLOSELY HELD.

38 (v) ANY OTHER NONGOVERNMENTAL EMPLOYER.]

39 3. "REPRODUCTIVE AGE" MEANS THE AGE RANGE IN WHICH AN INDIVIDUAL IS
40 DEEMED FERTILE AS ESTABLISHED BY THE AMERICAN SOCIETY OF CLINICAL ONCOLOGY
41 OR THE AMERICAN SOCIETY FOR REPRODUCTIVE MEDICINE.

42 4. "STANDARD FERTILITY PRESERVATION SERVICES":

43 (a) MEANS:

44 (i) OOCYTE AND SPERM PRESERVATION PROCEDURES THAT ARE CONSISTENT
45 WITH ESTABLISHED MEDICAL PRACTICES OR PROFESSIONAL GUIDELINES PUBLISHED BY
46 THE AMERICAN SOCIETY OF CLINICAL ONCOLOGY OR THE AMERICAN SOCIETY FOR
47 REPRODUCTIVE MEDICINE.

Senate Amendments to S.B. 1347

1 (ii) THE STORAGE FOR AT LEAST THREE [PLAN] YEARS OF PRESERVED
2 OVARIAN TISSUE, SPERM AND OOCYTE.

3 (b) INCLUDES CRYOPRESERVATION OF ANY OF THE FOLLOWING:

4 (i) OVARIAN TISSUE.

5 (ii) SPERM.

6 (iii) OOCYTE.

7 <<Sec. 5. Effective date

8 [This act is effective from and after December 31, 2027.]>>

9 Enroll and engross to conform

10 Amend title to conform

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02/13/2026

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